



Oconee County votes to restrict Flock surveillance cameras, affecting Clemson data sharing

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William Stehn

Oconee County shares and receives Flock network data with the Clemson City Police Department.

At a packed council meeting on Tuesday, the Oconee County Council approved an amended [ordinance](#) by a 4-1 vote to restrict Flock cameras and similar license plate-reading cameras in the area.

The councilmembers amended the original ordinance, which passed two readings prior to Tuesday — both by a 4-1 vote — to require the county administrator to send a written notice to Flock to remove all county cameras funded by Oconee County within 14 days of Tuesday's passage. Until their removal, all such cameras must be covered, according to the amendment.

The ordinance's passing makes the county the first in the state to [limit the use of license plate reader technology](#). While the ordinance doesn't explicitly ban Flock-brand surveillance cameras — or even all license plate readers — or prevent agencies from installing them, it will deny funding to any municipality that uses prohibited services provided by those systems.

“I’m proud of the council for leading. South Carolina has had a history of leading,” Councilman Matthew Durham, chairman and lead proponent of the ordinance, said during the meeting. “Unfortunately, we seem to have lost that way, but not in Oconee County.”

The ordinance broadly defines which surveillance platforms and capabilities it prohibits, including searchable histories of people or vehicles, tracking them across locations, sharing surveillance data through an external network, using facial recognition and combining surveillance data with other commercial or social media data.

Oconee County currently shares and receives Flock network data with other counties and law enforcement agencies, including the Clemson City Police Department, according to its [Flock transparency portal](#). None of the five members of the Oconee County Council responded to The Tiger’s requests for comment on how the ordinance would affect access to data already gathered and shared.

Durham said the ordinance centers on individuals’ Fourth Amendment rights to privacy and protection from unlawful search.

“We are talking about a technology capable of building a searchable record of where your vehicle went, when it went there and how often it goes back,” he explained in a [video](#) posted on his Facebook page prior to the ordinance’s passing. “Your church, your doctor, your attorney, a political meeting — thousands and thousands of people who are suspected of absolutely nothing can have their movements logged, stored and made searchable through networks that go far beyond Oconee County.”

While [numerous Oconee County residents support](#) the initiative, law enforcement has pushed back, with the Oconee County Sheriff’s Office using Darrell Brooks as an example of the cameras’ value: [Brooks was sentenced to consecutive life sentences](#) in prison after kidnapping and attempting to rape a Clemson student.

Durham further emphasized that while Flock cameras and similar technology are useful in law enforcement settings, their ease of use does not outweigh constitutional protections.

“Without it, some investigations may move slower, some may be harder,” he said. “But that does not outweigh the Fourth Amendment to the United States Constitution.”

Restrictions on governmental power and handicaps to law enforcement are essential, Durham continued, as “a government that can do its job without limits is exactly the kind of government the founders wrote the Bill of Rights to restrain.”

The ordinance’s passage follows the termination of two Greer, South Carolina, police officers, Kareem Lynch and Sebastian Echeverry, for falsely searching for information on individuals not under investigation, including another officer and several citizens.

Oconee Sheriff Mike Crenshaw also acknowledged his need to discipline an officer for improper use of the system “early on.”

“I did have a discipline issue, and that’s when I realized the importance of this,” he said during a [public hearing](#) on July 21. Now, misuse of the system is grounds for immediate termination.

The council seeks to define a difference between “the observation of a particular person, vehicle, device, activity, or event at a specific place and time,” which the ordinance does not seek to ban, and “the systematic collection, aggregation, identification, retention, analysis, and sharing of large numbers of observations in a manner capable

of reconstructing the movements, activities, behaviors, relationships, and associations of persons who are not suspected of criminal activity.”

The county isn’t disputing or discounting the legitimacy or effectiveness of license plate reading cameras or systems that compare them to a “hotlist” and alert police to matches. The ordinance instead limits the use of county funds and infrastructure to operate a system that constantly collects and stores information about citizens’ movements without them being suspected of a crime.

Basic license plate readers, which have been used for decades, will still be allowed, as would any system in which searchable data is inaccessible without prior judicial authorization. These systems include a warrant or a court order, provided the system isn’t contributing data before that [authorization is verified](#).

The ordinance is intended to prevent county funds from being utilized to operate a “mass surveillance system,” prevent county roads from use for the same system, establish eligibility for discretionary county funding with regard to such a system’s usage and “protect the privacy, liberty, freedom of movement, freedom of religion, freedom of association, political participation, property rights, and other rights of Oconee County residents and visitors.”

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